

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                 |                           |                                                       |                                    |                                 |
|--------------------------------------------------|---------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Alex Starace                    | Team:<br>Team # 1                                                               | CCRB Case #:<br>201011819 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                 |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 08/23/2010 8:00 PM   | Location of Incident:<br>344 Bradford Street and the 75th Precinct stationhouse | Precinct:<br>75           | 18 Mo. SOL<br>2/23/2012                               | EO SOL<br>2/23/2012                |                                 |
| Date/Time CV Reported<br>Mon, 08/23/2010 8:15 PM | CV Reported At:<br>IAB                                                          | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 08/27/2010 1:25 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
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| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. An officer       |        |        |         |
| 2. POM Andre Blake  | 27155  | 939924 | 075 PCT |
| 3. POM Jason Caputo | 27878  | 935156 | 075 PCT |
| 4. Officers         |        |        |         |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. SGT Melissa Clark   | 01621     | 932472 | 075 PCT  |
| 2. SGT Barbara Fischer | 01503     | 920284 | PBBN     |
| 3. POM Scott Just      | 12018     | 897760 | 075 PCT  |

| Officer(s)         | Allegation                                                                                       | Investigator Recommendation |
|--------------------|--------------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Jason Caputo | Abuse: At 344 Bradford Street in Brooklyn, PO Jason Caputo frisked § 87(2)(b)                    |                             |
| B.POM Andre Blake  | Force: At 344 Bradford Street in Brooklyn, PO Andre Blake struck § 87(2)(b) with an asp.         |                             |
| C.POM Andre Blake  | Force: At 344 Bradford Street in Brooklyn, PO Andre Blake used physical force against § 87(2)(b) |                             |
| D.POM Andre Blake  | Force: At the 75th Precinct station house, PO Andre Blake used physical force against § 87(2)(b) |                             |

| Officer(s)        | Allegation                                                                                         | Investigator Recommendation |
|-------------------|----------------------------------------------------------------------------------------------------|-----------------------------|
| E.POM Andre Blake | Force: At the 75th Precinct station house, PO Andre Blake used a chokehold against § 87(2)(b)      |                             |
| F. An officer     | Abuse: At the 75th Precinct station house, an officer threatened § 87(2)(b) with the use of force. |                             |
| G. Officers       | Force: At the 75th Precinct station house, officers used physical force against § 87(2)(b)         |                             |

### Case Summary

On August 23, 2010, § 87(2)§ 87(2)(b) called IAB to file a complaint on behalf of his friend, § 87(2)§ 87(2)(b) complaint number § 87(2)(b). On August 27, 2010, a spin-off of that complaint, § 87(2)(b) was received by the CCRB.

On August 23, 2010, at approximately 8:00 pm, § 87(2)(b) was outside of 344 Bradford Street in Brooklyn, when PO Andre Blake, PO Jason Caputo and PO Scott Just, all of the 75th Precinct, approached him because they suspected he was drinking from an open container. During the course of the interaction, the following allegations arose:

**Allegation A – Abuse of Authority:** At 344 Bradford Street in Brooklyn, PO Jason Caputo frisked § 87(2)(b) § 87(2)(g)

**Allegation B – Force:** At 344 Bradford Street in Brooklyn, PO Andre Blake struck § 87(2)(b) with an asp. § 87(2)(g)

**Allegation C – Force:** At 344 Bradford Street in Brooklyn, PO Andre Blake used physical force against § 87(2)(b) § 87(2)(g)

**Allegation D – Force:** At the 75th Precinct station house, PO Andre Blake used physical force against § 87(2)(b)

**Allegation E – Force:** At the 75th Precinct station house, PO Andre Blake used a chokehold against § 87(2)(b)

**Allegation F – Abuse of Authority:** At the 75th Precinct station house, an officer threatened § 87(2)(b) with the use of force.

**Allegation G – Force:** At the 75th Precinct station house, officers used physical force against § 87(2)(b)

This case was originally assigned to Inv. Danny Rivera, but was reassigned to the undersigned, Inv. Alex Starace, on November 24, 2010.

### Results of Investigation

#### Civilian Statements

**Victim:** § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of incident. He is a 5'7" tall, 210 pound Hispanic male. He is bald and has hazel eyes.

#### Interview Statement (6A-C)

§ 87(2)(b) was interviewed on October 1, 2010, at the CCRB.

At approximately 8:00 p.m. on August 23, 2010, § 87(2)(b) was standing outside of 344 Bradford Street in Brooklyn with his friend, § 87(2)§ 87(2)(b) and a number of individuals—most of whom he did not know, though one was named § 87(2)(b) and one § 87(2)(b) and another individual had the last name § 87(2)(b)

A dark, unmarked vehicle pulled up to the location. Three officers in plainclothes approached § 87(2)(b). They were identified via investigation as PO Andre Blake of the 75<sup>th</sup> Precinct, who was a black male, 5'7" tall, with dark skin, a stocky build and a black hair cut short, PO Jason Caputo of the 75<sup>th</sup> Precinct, who was a white male, 5'6" tall, stocky build, dirty blonde hair, in his late 20s to early 30s, and PO Scott Just of the 75<sup>th</sup> Precinct, who was a white male, at least 6'0" tall with an average build.

PO Blake instructed § 87(2)(b) to put his phone away and asked, "Do you have any weapons on you? Where are the drugs?" § 87(2)(b) stated that he was not in possession of a weapon. As § 87(2)(b) was following PO Blake's order, his black, rhinestone-encrusted belt buckle—which is shaped and sized like a 9 millimeter firearm—became visible, at which point PO Blake "grabbed on" § 87(2)(b) though he was unable to describe exactly how PO Blake did so. PO Blake then said, "He's got a gun!" At that time, PO Caputo came over to assist PO Blake and held § 87(2)(b) against a gate. PO Blake then said, "What are you doing? Are you resisting arrest?" Both PO Blake and PO Caputo handcuffed § 87(2)(b).

PO Blake and PO Caputo then pulled § 87(2)(b) off the gate and moved him towards their vehicle. A number of individuals on the scene told the officers to release § 87(2)(b). PO Just, who was otherwise uninvolved in the incident, instructed these individuals to stay away from the officers and § 87(2)(b).

Upon reaching the police vehicle, § 87(2)(b) then made a slight turn to his right and told those who were present to contact his wife as well as the Internal Affairs Bureau. At that point, PO Blake attempted to push § 87(2)(b) inside the driver's side of the vehicle, and subsequently hit him three to four times about the left knee with an asp. One of the other officers—identified via investigation as PO Caputo—then went around to the other side of the vehicle, opened the door, and grabbed and pulled at § 87(2)(b) who by then was seated, though his feet were out of the car. When PO Caputo pulled § 87(2)(b) further inside the vehicle, and once PO Blake put § 87(2)(b) feet inside the car, PO Blake punched him with his right hand once in the face—eventually causing a black eye. However, § 87(2)(b) did not bleed as a result of the physical force used against him.

Eventually, the officers entered the car, with PO Blake as the driver; PO Caputo sat in the front passenger seat. While en route to the 75<sup>th</sup> Precinct stationhouse, PO Blake told PO Just, who was sitting in the back of the vehicle, "This guy was fucking kicking me—did you see that shit?" PO Just said, "Yeah, I [saw] that."

Ten minutes later, § 87(2)(b) and the officers arrived at the 75<sup>th</sup> Precinct station house, where PO Blake declared to the front desk officer, PO4, who remains unidentified and who was described as a white female with a thin build and dark hair, that § 87(2)(b) had tried to assault and headbutt him. PO Blake punched § 87(2)(b) once in the face, then grabbed § 87(2)(b) with both hands by the throat and immediately slammed him to the ground. At that point, another officer, PO5, who also remains unidentified, and who was described as a white female with a thin build, blonde hair, in her late 20's to early 30's, pointed a Taser at § 87(2)(b) and said, "I'm going to shoot you, you fucking bastard!"

At no point during the incident did § 87(2)(b) swing at, kick, or headbutt any of the officers.

Many more officers—§ 87(2)(b) was unable to indicate how many—then arrived at the front-desk area, some of whom placed shackles on § 87(2)(b) ankles. § 87(2)(b) was face-down on the ground. A number of officers—§ 87(2)(b) did not know how many, and was unable to describe them—including PO Blake, then lifted him by his arms and the chain near the legs and carried him to the holding cell area. The officers then threw § 87(2)(b) onto the floor of a holding cell. While § 87(2)(b) landed face-first, he did not suffer any injuries as a result of this action.

Approximately one hour later, two unidentified white male officers in plain clothes asked § 87(2)(b) for a narrative of the incident; they then took pictures of § 87(2)(b) black eye and other marks, including those on his wrists.

§ 87(2)(b) presented the investigator with his Rikers Island identification card, which appeared to reflect a bruise under his left eye (encl. 6D). The picture on the ID card was taken about a week after the incident occurred. § 87(2)(b) did not seek medical treatment.

**Complainant/Victim:** § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of incident. He is a 5'6" tall, 150 pound black male with black hair and brown eyes. § 87(2)(b)

**Interview Statement (encl. 8A-C)**

On August 23, 2010, § 87(2)(b) called IAB to file a complaint. § 87(2)(b) later provided a telephone statement to the CCRB on September 27, 2010, and was then interviewed in person at the CCRB on October 26, 2010. § 87(2)(g)

On August 23, 2010, at approximately 8:00 pm, § 87(2)(b) and about five other individuals—including § 87(2)(b) (who shares § 87(2)(b) phone), and a man known only as § 87(2)(b) were sitting on the front steps of 344 Bradford Street in Brooklyn.

PO Blake, PO Caputo, and PO Just exited an unmarked black Crown Victoria, which had stopped in front of the building. PO Caputo frisked § 87(2)(b) and § 87(2)(b) while PO Blake frisked § 87(2)(b) who had been sending text messages. (In his initial telephone statement, § 87(2)(b) made no mention of any of the civilians, other than § 87(2)(b) being frisked by any of the officers.)

With regard to the frisk of § 87(2)(b)—who wore black jeans, a green t-shirt, black sneakers, and a do-rag—he stated that he had been frisked “from top to bottom.” Nothing was removed from his pockets.

None of the officers asked § 87(2)(b) about, or made reference to guns or drugs when they frisked him. PO Blake handcuffed § 87(2)(b) and led him to the police vehicle. § 87(2)(b) stopped and told the men in the group to call someone for him. PO Blake then struck § 87(2)(b) in the back of both legs approximately four to six times with an asp. (In his IAB statement, § 87(2)(b) claimed that § 87(2)(b) “fell” and made no mention of how § 87(2)(b) fell. In his telephone statement, § 87(2)(b) claimed that PO Blake also kicked § 87(2)(b) in the legs.) PO Blake then threw § 87(2)(b) inside the vehicle. PO Caputo then ran over to the other side of the vehicle and pulled § 87(2)(b) by his shoulders further into the vehicle—all while simultaneously hitting him with his hands an unknown number of times.

§ 87(2)(b) said, “Come here, come here! I’m bleeding!” § 87(2)(b) walked over and observed that § 87(2)(b) was bleeding from the nose. PO Blake, PO Caputo and PO Just then entered the vehicle and drove from the scene.

The group of civilians immediately went to the 75<sup>th</sup> Precinct stationhouse. § 87(2)(b) was already on the phone with IAB investigators.

§ 87(2)(b) heard screaming from the rear of the station house, but did not know who was screaming. § 87(2)(b) spoke with Sgt. Melissa Clark of the 75<sup>th</sup> Precinct, who was identified via investigation and was described as a 5’5” tall, heavysset black female in her late 20’s. § 87(2)(b)

wanted to make a complaint. Sgt. Clark said, “Aren’t you on the phone with [IAB] now?” § 87(2)(b) confirmed that he was, in fact, in the process of filing a complaint.

Sgt. Clark then said that only relatives of § 87(2)(b) could stay inside the precinct stationhouse; everyone else was ordered to leave. Sgt. Clark also said that those who refused to leave would be arrested for trespassing. § 87(2)(b) did not leave.

Ten minutes later, § 87(2)(b) was brought to the front desk area by PO Blake, at which time § 87(2)(b) noticed that § 87(2)(b) had two black eyes, a red face, and some dried blood on his face. § 87(2)(b) was then escorted to the rear of the stationhouse, after which Sgt. Clark said that § 87(2)(b) had been arrested for § 87(2)(b)

**Witness:** § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of incident. He is a 5’8” tall, 155 pound black male. He has black hair and brown eyes.

**Interview Statement (encl. 9A-C)**

§ 87(2)(b) was interviewed at the CCRB on October 1, 2010. § 87(2)(g)

- Additional individuals at the location were § 87(2)§ 87(2)(b) and an individual known only as § 87(2)(b)
- PO Blake and PO Caputo ran straight towards § 87(2)(b) after they got out of their vehicle and did not speak with him until after they grabbed him and placed him against a railing.
- No one other than § 87(2)(b) was frisked at the location.
- PO Blake punched § 87(2)(b) twice in the face prior to placing him in the officers’ vehicle.
- PO Blake used his asp to hit § 87(2)(b) only after he was placed in his vehicle, though § 87(2)(b) acknowledged that his view of this was blocked by the car door and the officers’ bodies.
- When § 87(2)(b) was in the officers’ car, PO Caputo was hitting § 87(2)(b) with an unidentified object such as a police radio, though, again, § 87(2)(b) was unsure on this point, because his view was blocked.
- PO Blake and PO Caputo each hit § 87(2)(b) more than ten times inside the police car.
- § 87(2)(b) was bleeding after he had been hit by the officers.
- PO Blake told unspecified individuals who had been a part of the group outside 344 Bradford Street and who were getting close to the officers’ car to “Get the fuck out of the way,” though this statement was not directed at § 87(2)(b)
- § 87(2)(b) was inside the 75<sup>th</sup> Precinct for approximately an hour. He did not observe any officers use any physical force against § 87(2)(b) or direct any obscene language or threats at § 87(2)(b) though he was told by unspecified individuals that § 87(2)(b) had been “beaten up” within the cells.

**Attempts to Contact Civilians**

According to the IAB log, someone identified only as § 87(2)(b) was at the location. On November 29, 2010, the number listed in the IAB log was called and the voicemail message stated that the phone number had been changed. The new phone number was called on the same

day and found to be inoperable. The original number was called again and a voicemail message was left for § 87(2)(b).

On the same day, a person who identified himself as § 87(2)(b) returned the call and said that he was known as § 87(2)(b) and was also the same person as § 87(2)(b) – he had used a pseudonym. § 87(2)(g)

However, upon listening to his voice on the recording of the phone call and comparing it to that of § 87(2)(b) during his in-person interview, § 87(2)(b) voice seemed to be different from that of § 87(2)(b). On November 30, 2010, § 87(2)(b) was again called and asked to call back the CCRB. He did not do so, and this matter was not pursued further.

A search of the Cole Information Directory did not reveal anyone with a name similar to § 87(2)(b) who lived at 344 Bradford Street.

A Lexis-Nexis search for § 87(2)(b) revealed one phone number and two addresses. The phone number was non-functional. Letters were sent to § 87(2)(b)'s two addresses on November 29, 2011. Neither letter was returned, but no one replied either.

A Lexis-Nexis search for § 87(2)(b) revealed numerous phone numbers and addresses. On December 2, 2010, letters were sent to five addresses most likely to be that of the witness in question, and calls were made to four of the five addresses (one address had no associated phone number). None of these contact attempts were successful and revealed that the contact information did not lead to the § 87(2)(b) in question.

Based on the Prisoner Holding Pen Roster (encl. 17A-G), three individuals could have possibly witnessed § 87(2)(b)'s assertion that he was thrown in his cell while shackled. Those individuals were: § 87(2)(b), and § 87(2)(b).

On December 2, 2010, the undersigned received a voicemail message from § 87(2)(b), who had previously been called and sent a letter, saying he had received the undersigned's contact attempts. However further contact attempts (both a letter and an additional phone call) did not result in § 87(2)(b) calling the undersigned again. During the follow-up call, the person who answered the phone claimed that § 87(2)(b) could not be reached at this number.

The undersigned spoke with § 87(2)(b) on December 7, 2010. He stated that he heard commotion in the cell area, though from his cell he could not see what was happening, and he did not know what had happened. He was therefore not asked to provide a formal statement.

The Cole Information Directory listed a phone number for § 87(2)(b) though when this number was called, the undersigned was told that ### § 87(2)(b) no longer lived there. 411.com, Lexis-Nexis and the DMV website did not reveal any additional information about § 87(2)(b) so he could not be contacted.

Because § 87(2)(b) and § 87(2)(b) are not full names and because no one who participated in the investigation was able to provide any other information about these individuals, there was not enough information to contact them.

### **NYPD Statements:**

#### **Subject Officer: PO ANDRE BLAKE**

- PO Blake was § 87(2)(b) years old at the time of incident. He is a 5'7" tall, 186 pound black male with black hair and brown eyes.
- PO Blake worked from 3:00 pm to 11:35 pm on August 23, 2010. PO Blake was assigned to SNEU. He was in uniform, but was assigned to an unmarked Crown Victoria. His partner was PO Caputo.

### **Memo Book (encl. 10A-D)**

2000: 1 under F/O 344 Bradford St, Delatorres, § 87(2)(b) M/H § 87(2)(b) § 87(2)(b) § 87(2)(b). Deft was stopped for drinking alcohol in public. Deft had lit cigarette in hand. Deft was asked to put cigarette away. Deft then pushed A/O, refused to comply with A/O's wishes. Deft was eventually handcuffed and while trying to put Deft in the RMP, Deft did kick A/O in the legs and knees repeatedly. Deft was brought to PCT. Before Desk Officer Deft did head butt A/O. Deft was taken away into cells and remain in handcuffs, deft remained handcuffed. Deft was violent and was spitting at A/O. Clock stamp wrong date @ the desk and inside LAPS. Sgt. Zephrein notified. Scene was violent, people started crowding us and pushing towards A/O and partner we left scene because scene was too dangerous. Deft was claiming that he was bleeding from the face. A/O took pictures of Deft face with DV camera and A/O's cellphone camera. Deft had no visible bruises or cuts to face. D.S. Clark was notified and shown pictures of Deft face where he claimed he was bleeding.



On August 23, 2010, PO Blake and PO Caputo parked and approached § 87(2)(b) who was sitting on the steps of 344 Bradford Street by himself. PO Blake was unsure if there were any other officers present. § 87(2)(b) was being stopped because he was drinking in public. § 87(2)(b) was also smoking a cigarette. The officers told § 87(2)(b) to put the cigarette out. (PO Blake feared § 87(2)(b) might try to burn him with it.) Instead of complying with this order, § 87(2)(b) refused, so either PO Blake or PO Caputo (PO Blake did not remember which) physically took the cigarette out of § 87(2)(b) hand. § 87(2)(b) pushed PO Blake and PO Caputo in the chest area, though neither officer fell down.

There were no other civilians at the location, but § 87(2)(b) began yelling into the building that he was being arrested and for people to come outside. Many residents inside ran outside and started crowding the officers and surrounding the arrest.

After § 87(2)(b) pushed the officers, the officers had to wrest § 87(2)(b) arms behind his back to handcuff him. § 87(2)(b) was holding his arms in front of his person so that the officers had to pull them behind his back, but he was not otherwise resisting the officers. The officers did not do anything other than pulling § 87(2)(b) arms behind his back to put § 87(2)(b) in a position where he could be handcuffed. It took approximately 5-10 minutes for the officers to handcuff § 87(2)(b).

PO Blake did not speak with any other civilians at location. PO Blake did not know if PO Caputo spoke or interacted with other civilians at the location. PO Blake did not see PO Caputo frisk anyone at the location.

After he was handcuffed, PO Blake took § 87(2)(b) to the officers' Crown Victoria, which was parked directly in front of the house. As PO Blake and PO Caputo were putting § 87(2)(b) into the back of the RMP, § 87(2)(b) was not letting himself be placed inside by crouching with his face towards the vehicle, and holding his body tense against the officers' attempts to place him inside the vehicle. Simultaneously, § 87(2)(b) was kicking backwards at PO Blake's and PO Caputo's thigh and knee area.

PO Blake was trying to push § 87(2)(b) into the vehicle as § 87(2)(b) continued to kick. PO Caputo went around the vehicle and opened the opposite door and pulled § 87(2)(b) by his collar into the vehicle. PO Blake did not strike § 87(2)(b) at any point during this interaction, nor did PO Blake punch § 87(2)(b) in the face. PO Blake did not remember using his asp during the course of placing § 87(2)(b) into the vehicle.

PO Blake did not speak with § 87(2)(b) on the ride back to the station house. PO Blake did not recall if he said, “This guy was fucking kicking me. Did you see that shit?”

Once PO Blake was at the station house, he bent over some paper work at the front desk to begin processing § 87(2)(b)'s arrest, when § 87(2)(b) who was still handcuffed, ran forward and headbutted PO Blake on the top left part of his head. PO Blake did not fall down as a result of the headbutt, but was stunned. Other officers then swarmed onto § 87(2)(b) and subdued him, though PO Blake did not assist in this. PO Blake could not remember which officers subdued § 87(2)(b) though PO Blake noted that Sgt. Melissa Clark was the desk sergeant at the time in question and witnessed the incident.

PO Blake did not recall if § 87(2)(b) was placed on the ground near the front desk, just after § 87(2)(b) had headbutted PO Blake. PO Blake did not recall any officer drawing a Taser, or threatening to use a Taser against § 87(2)(b). PO Blake did not recall any officer telling § 87(2)(b) “I’m going to shoot you, you fucking bastard.”

PO Blake did not place his hands around § 87(2)(b) neck, nor did PO Blake grab § 87(2)(b) and place him on the ground. PO Blake did not punch § 87(2)(b) in the face at the station house. PO Blake did not remember if he assisted in placing § 87(2)(b) into his cell. PO Blake could not remember how many officers subdued § 87(2)(b) and placed him into his cell. § 87(2)(b) was placed in leg shackles inside his cell.

**Subject Officer: PO JASON CAPUTO**

- PO Caputo was § 87(2)(b) years old at the time of incident. He is a 5'7" tall, 170 pound white male, who is bald and has brown eyes.
- PO Caputo worked from 3:00 pm to 11:35 pm on August 23, 2010. PO Caputo was assigned to SNEU. He was in uniform, but was assigned to an unmarked Crown Victoria. His partners were PO Caputo and PO Just. Since the date of incident, PO Caputo has been reassigned to the Auto Crime Division.

**Memo Book Entry (encl. 13A-B)**

2000: 1 male stopped in f/o 344 Bradford. Open container. Resisted. PO Blake 1 under from location.

**Witness Statement – Injury to Member of the Department (encl. 13C)**

In a statement signed by PO Caputo, he wrote that on August 23, 2010, at 8:00 pm, "I did witness defendant kick P.O. Blake numerous times in the leg and headbutt him in the head in front of the precinct desk."

**Interview Statement (encl. 13D-F)**

PO Caputo was interviewed on March 4, 2011, at the CCRB.

§ 87(2)(g) . PO Caputo denied interacting with anyone other than § 87(2)(b) at the location and denied frisking anyone at the location.

§ 87(2)(g) who was handcuffed, was sat in the rear driver's side seat of the officers' vehicle, with his legs sticking out. PO Blake went to swing § 87(2)(b) legs into the vehicle, so the door could be shut. However, as PO Blake bent down to do this, § 87(2)(b) kicked PO Blake two or three times.

PO Caputo did not assist PO Blake in subduing § 87(2)(b) or in placing § 87(2)(b) fully in the vehicle. PO Blake did not remove his asp during this interaction, nor did he strike § 87(2)(b) PO Caputo did not see how PO Blake got § 87(2)(b) into the vehicle, but PO Blake was able to do so by himself.

PO Blake did not say, "This guy was fucking kicking me. Did you see that shit," when the officers were in their vehicle with § 87(2)(b)

At the front desk at the 75<sup>th</sup> Precinct station house, § 87(2)(b) was "boisterous" because he was intoxicated, but he was brought to his cell without incident. Sgt. Fischer was at the desk at the time of incident, though PO Caputo was not certain on this point.

PO Blake was the officer who took § 87(2)(b) to the desk and who brought § 87(2)(b) back to his cell. PO Caputo assisted – after PO Blake emptied § 87(2)(b) pockets, he handed PO Caputo his firearm, and escorted § 87(2)(b) into the cells without incident. PO Caputo did not know what happened with § 87(2)(b) once he was in the cells.

PO Caputo did not see § 87(2)(b) headbutt PO Blake. PO Caputo did not see PO Blake punch or choke § 87(2)(b) PO Caputo did not recall § 87(2)(b) being placed on the ground or placed in leg shackles prior to his being placed in a cell. No officers drew a Taser. No officer held a Taser towards § 87(2)(b) and said, "I'm going to shoot you, you fucking bastard."

PO Caputo did not see any injuries on § 87(2)(b)

**Witness Officer: PO SCOTT JUST**

- PO Just was § 87(2)(b) years old at the time of incident. He is a 6'1" tall, 230 pound white male, who has grey hair and brown eyes.
- PO Just worked from 3:00 pm to 11:35 pm on August 23, 2010. PO Just was assigned to SNEU. He did not remember if he was in uniform or plainclothes, but he was assigned to an unmarked vehicle, number § 87(2)(b). His partners were PO Caputo and PO Blake.

**Memo Book Entry (encl. 14A-B)**

2000: 92C F/O 344 Bradford for Blake.

**Interview Statement (encl. 14C-E)**

PO Just was interviewed at the CCRB on March 22, 2011. § 87(2)(g)

§ 87(2)(b) PO Just stated that § 87(2)(b) did not push or attack PO Blake or PO Caputo when the officers first approached and talked to him.

§ 87(2)(g)

**Witness Officer: SGT. MELISSA CLARK**

- Sgt. Clark was § 87(2)(b) years old at the time of incident. She is a 5'4" tall, 165 pound Hispanic female, who has black hair and brown eyes.
- Sgt. Clark worked from 2:50 pm on August 23, 2010 to 12:50 am on August 24, 2010. Sgt. Clark was the desk officer. She was in uniform.

**Memo Book Entry (encl. 11A-C)**

1900: 63 [on meal break]

2000: 98 [returned to duty]

**Interview Statement (encl. 11D-E)**

Sgt. Clark was interviewed on January 25, 2011, at the CCRB. She claimed she had no recollection of the incident because she was not present. She stated that she was on meal break during the incident and was told about it afterwards. Sgt. Clark did not recall who filled her role as desk sergeant during her meal.

Sgt. Clark explained that a Taser is kept in a cupboard behind the front desk of the station house, but she did not use or draw or threaten to use a Taser during the night in question.

**Witness Officer: SGT. BARBARA FISCHER**

- Sgt. Fischer was § 87(2)(b) years old at the time of incident. She is a 5'2" tall, 130 pound white female, who has brown hair with blonde highlights and blue eyes.
- Sgt. Fischer worked from 11:45 am to 8:42 pm on August 23, 2010. Sgt. Fischer was assigned to supervise a field training unit from PBBN that was working out of the 75th Precinct. She was in uniform and assigned to a marked van, numbered 5480.

**Interview Statement (encl. 12C-D)**

Sgt. Fischer had no recollection of the incident. When asked if it was possible that she was in the station house at approximately 8:05 pm on August 23, 2010, Sgt. Fischer stated that it was not. She stated that she always returns to the station house with her field training team at 8:15 pm. Sgt. Fischer did not threaten to use a Taser on the day in question – she stated that she did not carry a Taser on the day in question.

## **NYPD Documents**

### **Command Log for 75<sup>th</sup> Precinct (encl. 16A)**

The Command Log for August 23, 2010, shows that at 8:05 pm PO Blake stamped in § 87(2)(b) arrest. § 87(2)(b) condition was “A/N [appears normal] & no injuries.” Force was used against § 87(2)(b) though what force is not specified. Sgt. Fischer gave § 87(2)(b) brother, § 87(2)(b) six dollars that had been found on § 87(2)(b) person.

There is no record of Sgt. Clark signing in and out of the Command Log as she took her meal.

### **Arrest Photograph**

§ 87(2)(b) arrest photograph was requested twice, and both times the request returned negative, meaning that the photograph was either not taken, or not kept on file.

### **Other Evidence**

#### **Inmate Look-Up Service Data (encl. 6D)**

The New York City Department of Correction has a photograph of § 87(2)(b) that was taken during his processing. However, it is not specified what date the photo was taken; § 87(2)(b) stated that his photograph at Rikers Island was taken approximately a week after the incident.

The photo shows that § 87(2)(b) has a slight bruise under his left eye.

#### **Arrest for Incident and Disposition (encl. 20A-C)**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Status of Civil Proceedings encl. (encl. 19A)**

- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of March 31, 2011, with regard to the incident.

#### **Civilian’s Criminal History (encl. 18A-F)**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Civilian’s CCRB History (encl. 3A)**

- This is the first CCRB complaint filed by § 87(2)(b)

#### **Subject Officers’ CCRB History**

- PO Blake has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Caputo has been a member of the service for six years and there are no substantiated CCRB allegations against him. (encl. 2B-C).

## Conclusion

### Identification of Subject Officers

§ 87(2)(b) described the officer who frisked him as a 5'6" tall white male with a stocky build, dirty blonde hair, in his late 20s or early 30s. PO Caputo matches this description.

§ 87(2)(g)

§ 87(2)(b) stated that the black male officer struck him with an asp, punched him inside the officers' vehicle, punched him inside the 75<sup>th</sup> Precinct station house, and choked him inside the 75<sup>th</sup> Precinct station house. PO Blake was the only black male officer to arrive at the initial scene of incident. § 87(2)(g)

§ 87(2)(b) stated that within the 75<sup>th</sup> Precinct station house a white female officer with a thin build, blonde hair, in her late 20's to early 30's, pointed a taser gun at him and said, "I'm going shoot you, you fucking bastard!" § 87(2)(g)

There was one such officer, Sgt. Barbara Fischer, who was listed in the Roll Call as being on-duty at the time of incident. However, she denied being at the location at the time of incident. Moreover, while she has brown hair with blonde highlights, she is § 87(2)(b) years old, which is significantly older than the estimate § 87(2)(b) gave for the subject officer. And so while PO Caputo claimed that he "believed" Sgt. Fischer was present for the incident, neither PO Just nor PO Blake were able to confirm this assertion, nor were the other civilians who arrived at the station house witness to this allegation.

Additionally, § 87(2)(b) stated that there were two white females in the station house during the incident. The second officer was also described as having a thin build, though with dark hair. This description could match Sgt. Fischer, who has dark hair with highlights.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that several officers leg-shackled him and carried him to a cell, and then threw him face-first on the ground. § 87(2)(b) was unable to identify or describe these officers, aside from stating that one of them was PO Blake. PO Blake, PO Caputo and PO Just were also unable to recall or identify which officers took § 87(2)(b) to his cell. Because § 87(2)(b) could not describe specifically which officers threw him to the ground, or how many did so, or how specifically PO Blake was involved, § 87(2)(g)

### Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

## **Investigative Findings and Recommendations**

### **Allegation A – Abuse of Authority: At 344 Bradford Street in Brooklyn, PO Jason Caputo frisked** § 87(2)(b)

§ 87(2)(b) alleged that PO Caputo frisked him, § 87(2)(b) and § 87(2)(b) when they were in front of 344 Bradford Street.

§ 87(2)(b) was uncooperative, and may in fact be the same person as § 87(2)(b) § 87(2)(b) did not make this allegation, nor did § 87(2)(b) corroborate this allegation. PO Caputo denied frisking anyone at the location, and PO Just supported this denial. PO Blake did not see PO Caputo frisk anyone at the location.

§ 87(2)(g)

§ 87(2)(g)

### **Allegation B – Force: At 344 Bradford Street in Brooklyn, PO Andre Blake struck** § 87(2)(b) **with an asp.**

NYPD Patrol Guide section 203-11 enjoins officers to use the “minimum necessary” force in all situations (encl. 1A-B).

With regard to this allegation, § 87(2)(b) stated that as PO Blake opened the rear passenger door on the officers’ vehicle, § 87(2)(b) turned and told those who were present to contact his wife as well as IAB. PO Blake attempted to push § 87(2)(b) inside the vehicle, and subsequently hit him three to four times about the left knee with an asp.

§ 87(2)(b) stated that PO Blake struck § 87(2)(b) in the back of both legs approximately four to six times with an asp just prior to his being placed within the police vehicle. (In his telephone statement, § 87(2)(b) claimed that PO Blake also kicked § 87(2)(b) in the legs.)

§ 87(2)(b) stated that PO Blake punched § 87(2)(b) twice in the face prior to placing him in the officers’ vehicle and that PO Blake used his asp to hit § 87(2)(b) only after he was placed in his vehicle, though § 87(2)(b) acknowledged that his view of this was obstructed.

PO Blake did not recall if he used an asp to gain § 87(2)(b) compliance when putting him in the police vehicle. PO Caputo and PO Just denied that PO Blake used his asp during the interaction. § 87(2)(g)

However, all three officers stated that § 87(2)(b) was kicking PO Blake during this time. This is also documented in the Arrest Report, Complaint Report, Line of Duty Injury Report, and AIDED Report for the incident, though there are two inconsistencies – in the Firearms Discharge/Assault Report, PO Blake wrote that § 87(2)(b) “attempted” to kick him, despite having the option of writing that § 87(2)(b) did kick him. Additionally, PO

Caputo, in his in-person statement, contradicted himself, when he claimed he did not witness § 87(2)(b) headbutting PO Blake despite his having signed off on having witnessed this action in his LOD witness statement, thus putting his entire witness statement in question.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) PO Caputo and PO Just asserted that PO Blake used no force whatsoever against § 87(2)(b) to get him in the vehicle, other than physically placing him into the vehicle, while PO Blake could not recall using any force other than physically placing § 87(2)(b) in the vehicle. § 87(2)(g)

§ 87(2)(g)

**Allegation C – Force: At 344 Bradford Street in Brooklyn, PO Andre Blake used physical force against § 87(2)(b)**

§ 87(2)(b) stated that once he was inside the officers' vehicle, PO Blake punched him with his right hand once in the face—eventually causing a black eye.

However, § 87(2)(b) claimed that PO Caputo was the officer who punched § 87(2)(b) once he was inside the vehicle.

According to § 87(2)(b) PO Caputo was hitting § 87(2)(b) with an unidentified object such as a police radio, though § 87(2)(b) was unsure on this point because his view was obstructed. According to § 87(2)(b) PO Blake and PO Caputo each hit § 87(2)(b) more than ten times inside the police car.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) claimed that his photograph, taken at Rikers Island, which displays a mark beneath his left eye that is consistent with a receding black eye, is evidence of his injuries during his interaction with the officers. § 87(2)(g)

Moreover, PO Blake denied punching § 87(2)(b) in the face, and PO Caputo confirmed this denial, while PO Just did not see PO Blake punch § 87(2)(b). Lastly, the Command Log stated that § 87(2)(b) condition was “apparently normal.”

§ 87(2)(g)



**Allegation D – Force: At the 75th Precinct station house, PO Andre Blake used physical force against § 87(2)(b)**

**Allegation E – Force: At the 75th Precinct station house, PO Andre Blake used a chokehold against § 87(2)(b)**

§ 87(2)(b) stated that when he was in front of the desk sergeant at the 75<sup>th</sup> Precinct station house, PO Blake falsely accused him of headbutting PO Blake, and then PO Blake punched him once in the face and grabbed him with both hands by the throat and immediately slammed him to the ground.

PO Blake stated that § 87(2)(b) headbutted him as he was filling out arrest paperwork, and that other officers then swarmed § 87(2)(b) and subdued him, though PO Blake did not assist in this. The LOD statement, the Arrest Report and the Complaint Report all confirm PO Blake's assertion that he was headbutted. PO Blake denied the allegations.

PO Just confirmed PO Blake's version of events, and stated that he did not see PO Blake either punch or choke § 87(2)(b) within the station house.

Despite the fact that he filled out a LOD witness statement in which he stated that § 87(2)(b) headbutted PO Blake, PO Caputo denied seeing this action or having any knowledge of this happening. PO Caputo claimed that § 87(2)(b) was brought to his cell without incident.

Despite the fact that PO Blake claimed Sgt. Clark was present for the entire incident, Sgt. Clark claimed she was not present for the incident, and therefore had no firsthand knowledge of what took place.

Likewise, despite the fact that PO Caputo believed Sgt. Fischer was present for § 87(2)(b) arrest processing, Sgt. Fischer claimed she was not present, and therefore had no knowledge of what took place.

§ 87(2)(g)

§ 87(2)(g)

**Allegation F – Abuse of Authority: At the 75<sup>th</sup> Precinct station house, an officer threatened § 87(2)(b) with the use of force.**

**Allegation G – Force: At the 75th Precinct station house, officers used physical force against § 87(2)(b)**

§ 87(2)(g)

Team: \_\_\_\_\_

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Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date